

#	Case Name	Tentative
		unjust enrichment claim merely incorporates allegations that are derivative of another statutory or legal claim that itself makes restitution available, a separate unjust enrichment cause of action may be dismissed. As the fraud allegations are pled as a standalone cause of action seeking the same relief, sustaining the demurrer is appropriate. <i>Lebrun v. CBS Television Studios, Inc.</i> (2021) 68 Cal.App.5th 199. <u>5th cause of action for unfair competition</u> As Fawaz has failed to sufficiently allege any underlying claim, the claim asserted under California Business and Professions Code § 17200 fails. The cross-complaint should allege specific facts such as: what representations were made to the public (and whether they were written, oral, or in advertisements); when and where these representations occurred; what made them false or misleading; how the retention of monies constituted a deceptive business practice; and how members of the public were likely to be deceived by the defendant's conduct. Without such factual allegations, the claim amounts to little more than a recitation of the statutory language, which is insufficient to survive a demurrer. The case management conference is continued to November 16, 2026 at 9:00 a.m. in Department C28. Licuaco shall give notice of this ruling.
52.	Nguyen v. City of Santa Ana 2024-01405366	Defendant The City of Santa Ana's demurrer to Plaintiffs Khanh and Bang Nguyen's Third Amended Complaint is OVERRULED. Within 10 days of this ruling, Defendant shall file an Answer to the Third Amended Complaint. In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of

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		judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) Defendant argues that a demurrer is warranted because Plaintiffs have not complied with the claim presentation requirement of Gov. Code §915 as it pertains to the Fourth Cause of Action for Wrongful Death. In support of this argument, Defendant requests the court to take judicial notice of the fact that the City has no record of having received any claim regarding the Fourth Cause of Action for Wrongful death within 1 year of the accrual of this cause of action. Government Code §915.2, subd. (a) provides in relevant part, "The claim, amendment, application, or notice shall be deemed to have been presented and received at the time of deposit." Plaintiffs allege in the Third Amended Complaint that they complied with Gov. Code §§915 and 915.2 by depositing their claims in the United States mail, addressed to the Clerk of the Council of the City of Santa Ana on 4/16/25. (TAC ¶¶11-16.) As a result, the question of whether the City Clerk for the City of Santa Ana has a record of receiving Plaintiffs' claim form does not demonstrate as a matter of law that Plaintiffs failed to comply with the requirements of Gov. Code §§915 and 915.2. Accordingly, the demurrer cannot be sustained and the request for judicial notice is DENIED, as the matters Defendant requests the court to take judicial notice of are not relevant to the disposition of the demurrer. Plaintiffs shall provide notice of this ruling.
53.	Fuller v. Exp Realty of California, Inc. 2024-01411644	Defendants Exp Realty of California, Inc., and Christian Fernandez's Demurrer to the First Amended Complaint ("FAC") is OVERRULED in part and SUSTAINED in part. Claims by Mackenzie Fuller On June 10, 2022, Plaintiffs entered into the contract to purchase the real property located at 43B Surfside, Seal Beach ("Property"). (FAC ¶ 7.) Their purchase closed and Plaintiffs took possession of the Property on July 8, 2022. (FAC ¶ 14.) Joshua Fuller filed the initial complaint on July 8, 2024. Mackenzie Fuller was not named as a Plaintiff until November 12, 2025.